

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0009430

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MICHAEL PARTOW	
vs.	
DEFENDANT: JUSTIN HILTON, ET AL	

NATURE OF PROCEEDINGS: MOTION - AMEND

RULING

This matter was last called on July 31, 2026, with Plaintiff Michael Partow and Defendants Debra Evans and Justin Hilton ("Defendants") all appearing, in pro per. Plaintiff filed a Motion for Leave to Amend the Complaint on July 2, 2026. Defendants Hilton filed an untimely opposition to the motion on July 29. The case was continued to August 21.

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading, which must be appropriately numbered, here as the First Amendment Complaint. Rule of Court, Rule 3.1324(a)(1). The moving party must state the allegations to be added, and where by page, paragraph and line number, and where additional allegations are located. Rule 3.1324(a)(3). The party must file a declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amendment were discovered, and the reasons why the requested amendment was not made earlier. Rule 3.1324(b).

Plaintiff has not filed a proposed amended complaint, nor was the motion supported by a declaration, as required. The motion to amend is DENIED.

On July 10, 2026, the court GRANTED Defendants' demurrer to the complaint, with leave to amend the second and third causes of action. Defendant is to prepare the order, forthwith.

Plaintiff is to amend his complaint in conformity of the court's ruling on July 10, within 30 days of entry of this order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-

7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/21/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0010022

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: MICHAEL
BOROKHOVICH

vs.

DEFENDANT: VOLKSWAGEN A.G., A
MULTINATIONAL CORPORATION, ET AL

NATURE OF PROCEEDINGS: 1) DEMURRER

2) DEMURRER

3) DEMURRER

RULING

Defendant Volkswagen A.G. made a special appearance on July 2, 2026, to file a motion to quash service of summons and complaint. The motion also sought an order dismissing the claims against it for lack of personal jurisdiction. The motion was GRANTED WITHOUT PREJUDICE, because Plaintiff did not file a response, nor was an opposition to the motion filed. (The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.))

Defendant filed a proposed order dismissing the defendant *with prejudice*. The court signed the order on August 7, 2026; however was never entered. That order is hereby vacated, with the Defendant ordered to correct and file the order of dismissal without prejudice.

Plaintiff filed an *ex parte* request to set aside that prior order pursuant to CCP §473(b), to explain that the Plaintiff did not respond to the *ex parte* due to improper service. The *ex parte* was heard on August 12, 2026, and was DENIED.

Plaintiff argues that the email notice of hearing was sent to the wrong address. Plaintiff's counsel confirms that notice was sent to her work email by the Defendants, and not to the firms' dedicated e-mail service account "eservicewarrantylaw@squirepb.com." In the court's view, Plaintiff was served because counsel for Plaintiff acknowledged that the email was sent to her work email address. Therefore, the counsel's firm received notice of the motion.

The court also advised Defense counsel that it would likely grant a request by Plaintiff's counsel to set aside the order re: motion to quash service based on this emailing error.